City of TORRANCE

Date: September 1, 2026

To: Honorable Mayor and Members of the City Council

From: Planning Commission
Michelle Ramirez, Community Development Director

By: Ulyses Vazquez, Planning Assistant | UVazquez@TorranceCA.gov

Subject: Planning Commission and Community Development – Conduct a Public Hearing and Adopt a **RESOLUTION** to Deny an Appeal and Uphold the Planning Commission's Approval of a Modification (MOD26-00001), to Allow First and Second Story Additions to an Existing Two-Story Single-Family Residence at 317 Calle Mayor (APN: 7514-020-044) and Determine a Categorical Exemption from the California Environmental Quality Act (CEQA). Expenditure: None.

RECOMMENDATION

Recommendation of the Planning Commission and Community Development Director that City Council:

1. Conduct a Public hearing; and
2. Deny the appeal; and
3. Determine a Categorical Exemption from the California Environmental Quality Act (CEQA); Article 19, Section 15301 (Existing Facilities); and
4. Adopt a **RESOLUTION** for the approval of MOD26-00001 of a previously approved PP83-42 to allow first and second story additions to an existing two-story single-family residence, on property located within the Hillside Overlay in the Single Family Residential (R-1) Zone at 317 Calle Mayor.

FUNDING

None required.

DISCUSSION

The project applicant, Michelle Gainer (Frederick Kieser and Mary Lynne Boorn), requests approval by the City Council to allow one and two-story additions to an existing two-story single-family residence, on property located within the Hillside Overlay in the R-1 Zone. The development standards of the R-1 Zone as well as the planning and design provisions of the Hillside Overlay are applicable to the project, and therefore require discretionary review and approval of MOD26-00001 to allow the proposed additions.

City Council Appeal
The primary issue on appeal is whether the proposed second floor balcony and bedroom addition to the rear of the residence has the potential to cause a substantial adverse privacy impact for

the property located below the project site at 170 via Monte D'oro. The appeal contends that the findings supporting approval of the project are not supported by evidence presented and that the proposed additions continue to create privacy concerns for the adjacent downslope property (Attachment 3). As discussed in detail below, staff has determined that, based on site observations, distance, and existing conditions, the north-facing second story additions do not result in such an impact. Staff recommends that City Council deny the appeal and approve MOD26-00001, as conditioned.

General Plan Land Use Designation

The project site has a General Plan Land Use designation of Low Density Residential (R-LO), which allows up to nine dwelling units per acre and is characterized by detached one- and two-story single-family residences on individual lots forming a cohesive neighborhood. The proposed additions to the existing two-story single-family residence are consistent with the R-LO land use designation, as the project maintains a single-family residential use, does not increase residential density, and is compatible in scale and character with surrounding development.

Zoning Designation and Adjacent Land Uses

The project site is zoned R-1 and located within the Hillside Overlay (R-H). The surrounding parcels that share the same zoning designation and developed with similar land uses (Attachment 2).

NORTH: R-1 / R-H One and Two-Story Single-Family Residences
SOUTH: R-1 / R-H Two-Story Single-Family Residences
EAST: R-1 / R-H One-Story Single-Family Residence
WEST: R-1 / R-H One and Two-Story Single-Family Residences

Project Site

The subject site was originally developed in 1937 with a two-story single-family residence with an attached two-car garage. The site consists of an irregularly shaped parcel measuring 15,812 square feet, located along the north side of Calle Mayor and oriented toward the south. Two existing Carob trees located to the south of the site were previously conditioned to be removed, however, the City Arborist conducted a review of both trees and determined that only the eastern Carob tree be removed, while the western tree may be retained.

The surrounding neighborhood is developed with a mix of one- and two-story single-family residences. The area exhibits notable topographic variation, with properties to the south situated at a higher elevation than the subject site, and properties to the north are at a lower elevation, reflecting an overall downward slope toward the north. In addition, Calle Mayor slopes down from east to west.

Previous additions to the residence were approved in 1984 under PP83-42, which included expansions to the first and second floors, including a drawing room, a new bay window, and construction of a second story rear "sun deck" with a spiral staircase providing access. At that time, staff determined there was no substantial adverse impact to surrounding properties from the proposed additions. In 1986, the Planning Commission denied a request to modify PP83-42 to allow the addition of 1,370 square feet, including the construction of a second story addition above a new garage, due to potential view impacts to properties located south of Calle Mayor.

The current project is primarily located at the rear of the residence and does not introduce new massing above the garage, thereby reducing the potential for view impacts.

Proposed Balcony and Bedroom
The project includes construction of a new second-story bedroom addition measuring approximately 319 square feet and a new balcony measuring approximately 144 square feet. The proposed additions are located within the footprint of the existing residence and replace the existing second-story sun deck which measures approximately 484 square feet. The new balcony is accessed through 2-panel sliding glass doors from the proposed bedroom and renovated hallway.

Hillside Overlay
In the Hillside Overlay, the permitting of additions measuring more than 14 feet in height is subject to zoning review via a Precise Plan, or Modification to a previously approved Precise Plan to determine that such additions do not have the potential to cause a substantial adverse impact on the view, light, air, and privacy of properties in the vicinity, and that there is no significant public controversy thereon. As part of the zoning review process, silhouette story-poles were installed to reflect the scale of the proposed additions.

On February 13, 2026, staff conducted site visits to the subject property and the surrounding neighborhood, including outreach to adjacent properties at 321, 309, 316, 312, and 308 Calle Mayor and 170 Via Monte D'oro. An initial field assessment was conducted to the property at 170 Via Monte D'oro on February 24, 2026, with the purpose of explaining the proposed project, sharing the project plans, and for the consideration of potential substantial adverse impacts to privacy.

During the initial field assessment, the resident at 170 Via Monte D'oro expressed concerns regarding the proposed north-facing bedroom window, balcony, and sliding glass doors overlooking the rear yard and pool area. Staff evaluated the project from the rear yard of the adjacent property and determined that the proposed additions would not create a substantial adverse impact to privacy because the project replaces an existing elevated sun deck that currently provides substantially the same viewing opportunity.

In response to residents' concerns regarding privacy, staff discussed potential design modifications with the applicant. As a result, the applicant revised the proposed bedroom window by incorporating window muntins, which more closely match the architectural style of the existing residence while providing additional visual screening. No changes were made to the proposed north-facing sliding glass doors that provide access to the balcony.

Following the initial public hearing and the filing of the appeal, staff conducted an additional site visit on June 6, to the subject property and July 17, 2026, from within the residence at 170 Via Monte D'Oro to further evaluate privacy concerns raised by the appellant. Based on observations from the interior of the home, staff did not identify substantial privacy impacts due to the separation distance between the properties, the existing topography, and the presence of the existing sun deck.

The proposed project does not introduce a new elevated vantage point. Instead, the project replaces an existing exterior deck with enclosed habitable floor area, thereby reducing the amount of accessible outdoor viewing area.

Specifically, the project reduces the existing second-story exterior deck area from approximately 484 square feet to 144 square feet. In addition, the length of the open balcony frontage is reduced from approximately 38.5 feet to 12 feet, representing a reduction of approximately 26.5 feet. This reduction decreases the available area from which occupants may overlook adjacent properties.

Additionally, construction of the proposed bedroom addition encloses a substantial portion of the existing deck, narrowing the available sightlines from the remaining balcony toward adjacent properties. Staff observed that the remaining views are primarily oriented towards the Pacific Ocean rather than directly into neighboring private outdoor and indoor living areas.

Prior Hearings and Publications
In accordance with the Torrance Municipal Code (TMC), notice of a public hearing was provided at least 10 calendar days before the Planning Commission meeting held on May 6, 2026, to consider an application filed by Michelle Gainer (Frederick Kieser and Mary Lynne Boorne) for MOD26-00001, requesting approval of an as-built rear yard deck on a property located within the Hillside Overlay District in the R-1 Zone. Notice of the public hearing was also posted at the project site, mailed to all property owners within a 500-foot radius of the project's exterior boundaries, and published in The Daily Breeze.

At the public hearing, the Planning Commission considered the request, received public testimony, and approved MOD26-00001 by a 4-0 vote, with two Commissioners absent. A timely appeal of the Planning Commission's decision was subsequently filed with the City Council on May 18, 2026.

In accordance with the TMC, notice of the City Council public hearing was provided at least 10 calendar days before the September 1, 2026, City Council meeting to consider the appeal of the Planning Commission's approval of MOD26-00001. Notice was also posted at the project site, mailed to all property owners within a 500-foot radius of the project's exterior boundaries, and published in The Daily Breeze.

Conclusion
In staff's judgment, the project is consistent with the R-LO General Plan land use designation, complies with the objective development standards of the R-1 Zone and the planning and design provisions of the Hillside Overlay District, and does not require additional environmental review.

Based on multiple site visits, a thorough review of the project plans, and an evaluation of existing site conditions, staff concludes that the proposed additions will not result in a substantial adverse impact on the privacy of surrounding properties. The project does not introduce new elevated vantage points beyond those that currently exist. Rather, it replaces a substantially larger existing second-story sun deck with enclosed living space and a smaller balcony, thereby reducing the exterior viewing area and limiting available sightlines toward the adjacent residence at 170 Via Monte D'Oro.

ENVIRONMENTAL FINDINGS

The project is categorically exempt from the California Environmental Quality Act (CEQA) pursuant to CEQA Guidelines Article 19, Section 15301(e) (Existing Facilities).

ATTACHMENTS

1. Resolution
2. Location and Zoning Map
3. Appeal Filing
4. Project Plans
5. Planning Commission Minutes Excerpt (May 6, 2026)
6. Planning Commission Staff Reports (May 6, 2026)
7. Correspondence (Post-Planning Commission Meeting) (Materials Available)
8. Proof of Publication and Notification (Materials Available)